

Smt Sanju D/O Shri Chunni Lal,W/O-Shri ... vs State Of Rajasthan on 19 August, 2019

Author: Pankaj Bhandari

Bench: Pankaj Bhandari

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Criminal Miscellaneous (Petition) No. 2907/2019

1. Smt Sanju D/o Shri Chunni Lal,w/o-Shri Baldev Saini, Aged About 21 Years, R/o-Ward No-11,kua Khilariya Nangal, Jhunjhunu,dist-Jhunjhunu,raj.
2. Baldev Saini S/o Shri Mula Ram Saini, Aged About 31 Years, R/o-11,kua Khilariya Nangal, Jhunjhunu,raj. Jhunjhunu,dist-
-----Petitioners

Versus

1. State Of Rajasthan, Through Principal Secretary, Home Department, Secretariat, Jaipur.
2. Superintendent Of Police, Jhunjhunu, Raj.
3. S.H.O, Police Station, Udaipurwati, District-Jhunjhunu.
4. Shri Shri Chunni Lal,s/o-Shri Rameshwar Lal, R/o -11,kua Khilariya Nangal, Jhunjhunu, Dist-Jhunjhunu, Raj. -----Respondents

For Petitioner(s) : Mr. Naveen Dhawan
For Respondent(s) : Mr. Pradeep Mathur
For State : Mr. Ganesh Saini, PP

HON'BLE MR. JUSTICE PANKAJ BHANDARI

Judgment / Order

19/08/2019

1. Matter comes up on an application moved by the Respondent No.4 for vacation of the stay order. With the consent of parties, matter is taken up for final disposal.

2. Petitioners have preferred this Criminal Miscellaneous Petition seeking protection of life and liberty.

3. It is contended by counsel for the petitioners that Certificate of registration of marriage is

annexed with the petition.

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4. Counsel for the Respondent No.4-father of Petitioner No.1, has objected to the petition. It is contended that petitioners falls within the prohibited degrees under Sub Clause (IV) of Clause II of Section 5 of the Hindu Marriage Act.

5. It is contended that Petitioner No.2 happens to be uncle of Petitioner No.1. The marriage is void, hence, the Court cannot grant protection to the petitioners.

6. It is also contended that the marriage performed by petitioners being in contravention of Sub Clause (IV) of Clause II of Section 5 of the Hindu Marriage Act, the same is punishable under Clause (B) of Section 18 of the Hindu Marriage, hence, Court cannot perpetuate illegality by giving protection to the petitioners.

7. I have considered the contentions.

8. Admittedly, Petitioner No.1 and Petitioner No.2, fall within prohibited degrees, as Petitioner No.2 is uncle of Petitioner No.1 and the same is established by Annexure-R/4/5 submitted by Respondent No.5. However, fact that petitioners have married is also not in dispute, as they have got their marriage registered before the Marriage Registration Officer and the same is established by the Certificate of Registration of Marriage issued by the Authority. Petitioners have approached the Court with a limited prayer of seeking protection, this Court is of the view that even if a void marriage has taken place between petitioners, right to get the same declared as void, as per Section 11 of the Hindu Marriage Act, lies with the party to the marriage. No one can be permitted to take law in his own hands and since the prayer is limited, prayer deserves to be allowed, as no one can be given liberty to take law in their own hands.

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9. Hence, the present Criminal Miscellaneous Petition seeking protection of life and liberty to the petitioners is allowed. Stay application stands disposed.

10. Respondent No.3 is directed to keep vigil so that no harm is caused to the life and liberty of the petitioners at the hands of those who are opposing the marriage.

(PANKAJ BHANDARI),J AMIT KUMAR /6 Powered by TCPDF (www.tcpdf.org)